

SENATE BILL 1402

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 4,
relative to the James K. Polk Home.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-13-201, is amended by deleting the section and substituting:

The Tennessee historical commission, with approval from the state building commission, shall enter into good faith negotiations for the purchase and transfer of a tract of land in the second ward of the city of Columbia, located on the corner of West Seventh Street and South High Street, known as the James K. Polk Home, originally conveyed to this state by George L. Reynolds and Bessie F. Reynolds by deed dated January 8, 1929, recorded in the registrar's office of Maury County, Tennessee, book 177, page 71, and subsequently conveyed in trust to the James K. Polk Memorial Association for its general welfare and maintenance, such trust now being terminated by the general assembly in accordance with § 4-13-204, as that section existed on June 30, 2025.

SECTION 2. Tennessee Code Annotated, Section 4-13-202, is amended by deleting the section and substituting:

(a) The Tennessee historical commission may expend funds appropriated or available to it in the repair, renovation, and restoration of the James K. Polk Home, and the improvement of the premises for use by the general public.

(b) The Tennessee historical commission will hold legal title to the property, but may assign actual custody and control of the property to a Tennessee nonprofit corporation organized for the express purpose of restoring, maintaining, and operating

the James K. Polk Home and its premises. Such corporation has the right to operate and manage the property on behalf of the Tennessee historical commission for the benefit of the general public, and to keep the property and improvements in a high state of improvement and repair, and to operate and maintain the grounds improved by the Tennessee historical commission in a manner consistent with such guidelines as may be promulgated by the Tennessee historical commission, or as the Tennessee historical commission may contract with the corporation.

SECTION 3. Tennessee Code Annotated, Section 4-13-203, is amended by deleting the section and substituting:

The Tennessee historical commission shall make an annual report to the governor and the speakers of the senate and house of representatives of the performance of its duties under this part.

SECTION 4. Tennessee Code Annotated, Section 4-13-204, is amended by deleting the section and substituting:

It is the intent of this part that the James K. Polk Home be operated as a museum house open to the general public and preserved for the citizens of Tennessee and future generations.

SECTION 5. Tennessee Code Annotated, Section 4-29-248(a)(28), is amended by deleting the subdivision, effective upon conveyance of the James K. Polk Home in accordance with § 4-13-201.

SECTION 6. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 7. This act takes effect July 1, 2025, the public welfare requiring it.